

Court No. - 1

Case :- WRIT - C No. - 5242 of 2020

Petitioner :- Deepika Dubey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bipin Kumar Tripathi

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri B.K. Tripathi, learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for respondent no. 2.

By means of this writ petition under Article 226 of the Constitution, the petitioner has questioned the recovery citation dated 20.07.2019.

Assailing the recovery citation, it has been argued on behalf of the petitioner that there is a serious error in the computation of electricity charges under the bill. Specific averments have come to be made in para 16 of the writ petition.

Sri Mahboob Ahmad, learned counsel for the respondent no. 2 submits that the matter can be remitted to the authorities to decide the objections of the petitioner regarding correction of bill.

In view of the above, writ petition is **disposed of** with a direction to the petitioner to make a fresh objection with regard to computation of electricity charges in the bill before the competent authority within a period of two weeks, who shall consider the grievance of the petitioner and objection that he is raising with regard to computation of electricity charges in the bill and decide the same within a further period of four weeks by a reasoned and speaking order in the light of provisions under clause 6.5 of the U.P. Electricity Supply Code, 2005. No coercive measure shall be taken against the petitioner pursuant to impugned recovery citation as the same shall be subject to the modified order to be passed in the matter, as has been directed herein above.

Order Date :- 13.2.2020

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(Ajit Kumar,J.) (Ramesh Sinha,J.)